

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 27, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Shanor moved to approve Consent Agenda items, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on January 13, 2014. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Shanor. Upon inquiry regarding a voucher payable to E/S3 Consultants, Inc., Jim Elias, Public Works Director, clarified the consultant is finishing up work on the City's energy efficiency project with regard to federal Buy America provisions. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

ORDINANCE - Amending the Cheyenne Unified Development (UDC), as approved by Ordinance No. 3943 on January 23, 2012, to adopt amendments identified as election sign amendments from the 2013 annual review (postponed from Jan. 13, 2014). Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Cook. Dr. Rinne moved to postpone to Feb. 10, 2014, seconded by Ms. Broyles. Upon inquiry, Dan White, City Attorney, advised in view of the lawsuit that has been filed against the City, outside legal counsel has been retained to review necessary pleadings and to offer advice on proposed ordinance wording. Motion to postpone carried. Voting "yes" -- all members of the governing body. Mayor Kaysen noted the item will be reviewed at the next Public Services Committee to be held on Feb. 4, 2014 at noon in Room 122, Municipal Building.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code changing the zoning classification from LI Light Industrial to MUR Mixed-Use Residential Emphasis for Lot 8, Block 223, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of Dillon Avenue and W. 21st Street). Dr. Rinne moved to approve on second reading, seconded by Mr. Luna. Upon inquiry regarding non-conforming uses in the area, Brett

Walker, Development Office, stated it would probably be beneficial to have a small area plan in place for future considerations and to include options that may be available based upon zoning requests from other property owners in the area. Comments followed on the purpose of re-zoning the area to Light Industrial (LI) several years ago, and the need to re-evaluate area zoning relative to residential uses. Dan Edeen, Phoenix Builders, advised he was in attendance to answer any questions. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Vacating a portion of 16 foot alley in Block 353, Original City, Cheyenne, Wyoming (located at the southeast corner of the intersection of W. 18th Street and Thomes Avenue). Dr. Rinne moved to approve on second reading, seconded by Mr. Luna. It was noted that a portion of the alley is being requested to be vacated in preparation for construction of the new public safety building. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), to adopt amendments to increase the maximum Administrative Adjustment from 10% to 50% for infill and redevelopment as initiated from the 2013 annual review -- referred to Public Services Committee (sponsor -- Mr. Shanor).

ORDINANCE - Amending various sections of the Cheyenne Unified Development Code (UDC), to add an Urban Loft Lot Type (NB3) and “Urban Loft Building” definition, allowed as a Use Permitted By Right and Use Permitted after Conditional Discretionary Review in Residential, Mixed Use and Neighborhood Business districts -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to execute a State Historic Preservation Office Certified Local Government Grant Agreement for attendance at the 2014 Saving Places Conference. Motion (per Consent Agenda) carried. (#5561 Res./#6122 Contract)

RESOLUTION - Designating the Sundays during 2014 that annual liquor licensees may extend dispensing room hours of operation for sales until 2:00 A.M. the following day. Kevin Georges, President, Laramie County Liquor Dealers Association, advised the requested Sundays (Super Bowl Sunday, Sunday of Memorial Day weekend, 1st Sunday of Frontier Days, and Sunday of Labor Day weekend) were chosen based on time frames involving special events and activities and provides licensees with a choice of extending hours for sales to promote patronage of benefit to businesses and in support of tourism. Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Mr. Luna. Upon inquiry, Chief Brian Kozak, Police Department, provided information relative to the department’s report on violations/offenses occurring during past years’ approved Sundays, noting the total number of offenses in the report may not have involved alcohol. Comment followed on state legislative vs. local government involvement in addressing extended hours, and concern with alcohol-based incidents and related vehicular accidents in general. Motion carried. Voting “yes” -- all members of the governing body with the exception of Ms. Broyles voting “no”. (#5562)

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board for the Transfer Station

Upgrade Phase II -- referred to Finance Committee (sponsors -- Mr. Brown and Mr. Allen).

[CA] RESOLUTION - Setting aside monies in the 2015 fiscal year budget to be used to implement corrective or emergency measures for structures that are deemed vacant, unsafe, dangerous or otherwise unfit for human occupancy pursuant to the City of Cheyenne Dangerous Building Code -- referred to Finance Committee (sponsor -- Ms. Williams).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for the Cheyenne Public Safety Center, a replat of portions of Lots 1 thru 8, and that portion of vacated alley, Block 353, Original City, Cheyenne, Wyoming (located at the southeast corner of the intersection of W. 18th Street and Thomas Avenue) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and Laramie County Sheriff's Department for Explosive Ordnance and Disposal (EOD), Special Weapons and Tactics (SWAT) and Crisis Negotiation Unit (CNU) operations and law enforcement extraterritorial assistance and activities. Motion (per Consent Agenda) carried. (#6121)

[CA] Amendment No. 1 to Professional Services Contract No. 5917 between the City of Cheyenne, Metropolitan Planning Organization, and Ayres Associates, Inc. for the Dell Range Corridor Study, Phase II (Federal MPO funds, Federal Highway Safety Grant) -- referred to Finance Committee.

[CA] Consideration of Bid #R-8-14 for furnishing two new 2014-2015 trucks for the City of Cheyenne, Public Works Department (2011 - 2014 1% Sales Tax & General Small Equipment fund). Motion (per Consent Agenda) carried (accept bid from Spradley Barr Motors, Cheyenne, in an amount not to exceed \$117,736.61).

[CA] Consideration of Bid #M-12-14 for constructing a wood structure, metal siding building, (pole barn) for the City of Cheyenne, Parks & Recreation Department, Urban Forestry Division (2011-2014 1% Sales Tax & Contractual Maintenance Account Urban Forestry) -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne Public Works Department, Transit Division and Radio Engineering Industries, Inc., to provide Computer Aided Scheduling Software with Mobile Data Terminals (Transit Federal funds) -- referred to Finance Committee.

Re-Appointments of Ann Picot and Daryl Hensel to the Mayor's Council for People with Disabilities. Ms. Broyles moved to approve, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made of a Public Hearing to be held February 10, 2014, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Minglemill, Inc. d/b/a Mingles, 1618 Stillwater Avenue, Cheyenne, Wyoming (License currently held by Stillwater, Inc.

d/b/a Mingles, 1618 Stillwater Avenue, Cheyenne, Wyoming).

There being no further business to come before the governing body, the meeting was officially adjourned at 6:25 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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